

STATE OF NEW YORK

5079--A

2025-2026 Regular Sessions

IN ASSEMBLY

February 12, 2025

Introduced by M. of A. O'PHARROW -- read once and referred to the Committee on Economic Development -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law and the executive law, in relation to enacting the "school security guard training enhancement act"

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "school security guard training enhancement act".

3 § 2. Article 7-A of the general business law is amended by adding a
4 new section 89-x to read as follows:

5 § 89-x. Applicability to school security guards. 1. School security
6 guards employed or contracted by a school in this state, including, but
7 not limited to, retired police officers that have been retired for more
8 than five years, shall obtain a specialized certification, in addition
9 to the general security guard license required by this article. Such
10 specialized certification shall require the completion of a school-spe-
11 cific training program, including, but not limited to, role and respon-
12 sibility of school security officers, school-related laws and liability,
13 security awareness in the educational environment, youth
14 mediation/conflict resolution, disasters and emergencies, dynamics of
15 student behavior and cultural awareness, restorative practice, crisis
16 prevention, and the Dignity for All Students Act (DASA).

17 2. The specialized training program shall be implemented and enforced
18 by the department, in consultation with the department of education and
19 the department of criminal justice services, the division of homeland
20 security, state police and local law enforcement. Such training program
21 shall be standardized and approved statewide.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD00537-02-5

1 3. The secretary shall, in consultation with the department of educa-
2 tion and the security guard advisory council, adopt rules and regu-
3 lations implementing the provisions of this section. Such rules and
4 regulations shall include, but not be limited to:

5 (a) requirements of the specialized certification and school-specific
6 training program;

7 (b) criteria determining if prior training and experience may be used
8 to satisfy the training requirements of such specialized certification;

9 (c) the period of time after this section becomes a law when the
10 program shall be implemented; and

11 (d) upon implementation of the certification program, determine a
12 period of time not to exceed one year that individuals will have to
13 obtain such certificate to continue serving as a school security guard.

14 4. Nothing in this section shall supersede the language of any collec-
15 tively bargained agreement subject to article fourteen of the civil
16 service law. Any costs associated with this training, or leave time
17 required, shall be subject to a collectively bargained agreement under
18 article fourteen of the civil service law.

19 § 3. Paragraphs (c) and (d) of subdivision 1 of section 841-b of the
20 executive law, as added by chapter 336 of the laws of 1992, are amended
21 and a new paragraph (e) is added to read as follows:

22 (c) minimum qualifications for instructors at approved security guard
23 training schools and training programs; ~~and~~

24 (d) the subject matter of all training requirements which security
25 guards and security guard applicants must complete before being regis-
26 tered as unarmed and armed security guards~~[-]~~; ~~and~~

27 (e) the training requirements for the school-specific training program
28 described in section eighty-nine-x of the general business law.

29 § 4. Subdivision 7 of section 841 of the executive law, as amended by
30 section 6 of part Q of chapter 56 of the laws of 2009, is amended to
31 read as follows:

32 7. Consult with and cooperate with other departments and agencies of
33 the state concerned with police officer, school security guards, and
34 peace officer training;

35 § 5. This act shall take effect on the one hundred eightieth day after
36 it shall have become a law. Effective immediately, the addition, amend-
37 ment and/or repeal of any rule or regulation necessary for the implemen-
38 tation of this act on its effective date are authorized to be made and
39 completed on or before such effective date.